

25SMCV05226 25SMCV05226

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-24

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Case Number: 25SMCV05226 Hearing Date: August 24, 2026 Dept: I

The court has before it a motion to compel responses. The motion is DENIED. It was filed before the time to respond had expired and is therefore premature. Moreover, defendant contends that timely responses were in fact served.

The court also has two ex parte matters. The first is a request for leave to record the lis pendens. The second is for a TRO. The underlying allegations are that plaintiff owned or owns real property. Defendants allegedly caused fraudulent debts to be recorded against the property, and now those lenders are seeking to foreclose. The questions the court has are these.

With regard to the TRO, what is the timeline? A notice of default has been issued, but the court does not know when any foreclosure sale might occur. The court is more concerned if the sale is tomorrow than if it is not going to occur for four months. If it is tomorrow, then emergency relief might be needed; if it is in four months, then this can await a preliminary injunction hearing. The court will inquire. That said, the court would be inclined to be sure that no sale occurs between now and the time the parties may be heard.

As to the lis pendens, the matter is presently set for December 17, 2026. The court needs to better understand why there are exigent circumstances such that the matter cannot be heard on that date. If it is the feared sale, the court would be inclined to learn about the proposed sale date. An alternative might be to advance the hearing date now on calendar.